

No appearances required. In light of the proofs of service of the Summons and Complaint filed on May 6, 2026 along with the declaration of counsel for Plaintiff Westcon, the OSC is hereby dismissed.

9. CU14-080744 TIMOTHY P DEMARTINI et al vs. MICHAEL J DEMARTINI et al

Plaintiffs' motion for relief and disposition of funds is granted.

Plaintiffs' unopposed requests for judicial notice are granted.

The Court's February 3, 2026 Order noted, "it seems the appeal is moving forward, and, once such has been decided, the Court will be in a position to take further action in this matter." On June 17, 2026, Defendants' appeal was dismissed for failure to file their opening brief, and on July 16, 2026, Defendants' request to reinstate the appeal was denied. RJN, Ex. G. Therefore, because there is no longer any appeal, there is no further reason to delay distribution of the funds in accordance with the Court's September 11, 2023 Statement of Decision and Judgment and the Court's August 13, 2025 Order. RJN, Exs. A-B. Therefore, the Clerk of the Court shall disburse all funds held in trust by the court in relation to this matter. The Court is aware of its prior award of costs payable to Plaintiffs in the amount of \$11,433.35 and requests parties appear to indicate whether a stipulation might be entered related to payment of the costs from Defendant Michael DeMartini's share of funds. If no stipulation is reached, the Court expects no more than a two page briefing related to payment of costs from the funds held by the Court. In addition, the Court requests parties' direction as to the manner in which payment of funds should be made, specifically, whether each side wishes payment be made to parties jointly, singularly, or, in the case of Plaintiffs, to counsel FBO one or both plaintiff.

10. FL0001988 Berber, Victoria Saldana v. Rodriguez, Jorge Aron Diaz

Attorney for Petitioner, Eric C. Werner, Esq. of Werner Law, PC is ordered to show cause as to why he should not be sanctioned \$250.00 for failing to appear with his client at the OSC set on June 18, 2026, failing to file a change of address with the Court, and failing to address the issues set forth in the OSC previously issued and set for June 18, 2026 on behalf of his client.